

**BEFORE A
COMMISSION ON PROFESSIONAL COMPETENCE
CARMEL UNIFIED SCHOOL DISTRICT**

In the Matter of the Dismissal of:

**RUSSELL SHUGARS, a Permanent Certificated Employee,
Respondent.**

OAH No. 2024090043

DECISION

A Commission on Professional Competence (Commission) heard this matter in Carmel-by-the-Sea, California, on February 3 through 6, 2025. The Commission's members are Joe Jones and Kevin Sparrer, both from the San Jose Unified School District, and Administrative Law Judge Juliet E. Cox, State of California, Office of Administrative Hearings, who presided.

Attorney Ingrid Meyers represented complainant Craig Chavez, Chief Human Resources Officer, Carmel Unified School District.

Attorney Joseph A. Cisneros represented respondent Russell Shugars, who was present throughout the hearing.

The Commission received oral opening statements, testimonial and documentary evidence, and oral closing arguments. The record closed and the matter was submitted for decision on February 6, 2025.

FACTUAL FINDINGS

1. The Carmel Unified School District operates three elementary schools in Monterey County.

2. Respondent Russell Shugars began serving as an elementary-grade physical education teacher in the District in 2007 or 2008.¹ Initially, he taught in all three District elementary schools. After approximately 2010, and continuing until May 2024, respondent taught only at Carmel River Elementary School.

3. On August 14, 2024, acting in his official capacity as the District's Chief Human Resources Officer, complainant Craig Chavez filed a Statement of Charges against respondent with the District's Board of Education. On that same date, the District's Board adopted District Resolution 24-15, stating the District's intent to dismiss respondent from employment based on the Statement of Charges.

4. Chavez served Resolution 24-15 and the Statement of Charges to respondent on August 15, 2024. Respondent timely requested a hearing.

Respondent's Education and Experience

5. Respondent grew up in Maryland, and received a bachelor's degree with a major in kinesiology.

¹ Respondent does not recall precisely when he began teaching in the District, and no other evidence included this information.

6. In 2001, respondent moved to Los Angeles. He taught physical education at a private school, to students in kindergarten through second grade.

7. Respondent's private school experience led him to decide that he should make education his career. He attended a one-year teacher credentialing program at California State University, Northridge. In June 2004, he obtained a single-subject credential from the California Commission on Teacher Credentialing authorizing him to teach physical education.

8. Respondent then moved to Monterey County. He taught physical education for about three-and-one-half years at Seaside High School before joining the District.

9. Respondent also has served as a wrestling coach for students in middle and high schools. He coached high school wrestling when he lived in Los Angeles, and at Seaside High School. In the District, he has coached both middle school and high school wrestling.

10. The only disciplinary record in evidence regarding respondent from before March 2024 is a conference summary memorandum from March 2022. Former Carmel River Elementary School principal Jay Marden testified that he had received occasional complaints about respondent from students' parents and teachers over approximately 14 years,² but that he never deemed any such complaints serious enough to warrant either disciplinary action or a referral to the District's Human Resources staff. The evidence does not establish whether Marden's characterization of

² Marden retired at the end of the 2022–2023 school year.

these complaints, in aggregate, is reasonable with respect either to their frequency or their seriousness.

Allegations of Unprofessional Conduct During March 2024

11. The Statement of Charges alleges four instances of unprofessional conduct by respondent in March 2024, all involving fifth-grade students. As to each of these four events, respondent's testimony was the only non-hearsay evidence about them.

MARCH 1, 2024

12. On March 1, 2024, respondent held a fifth-grade physical education class in the Carmel River Elementary School's indoor multipurpose room, because of rain. The class engaged in a jump-rope activity.

13. One student, CS, dove through the jump rope head-first, rather than running or jumping upright. Respondent told CS not to repeat this behavior, because it was dangerous. Complainant alleges specifically that respondent told CS, "this has gone too far!" and "you wouldn't do [the head-first diving action] outside so just stop." Respondent testified credibly that he does not recall exactly what he said to CS but that he likely did say substantially what complainant alleges.

14. Complainant alleges that respondent also called CS a "clown," and that respondent described CS as seeking often to be the center of attention as if he were starring in the "CS Show." The evidence establishes that complainant used these words to describe CS in conversation with other adult District staff members about the incident summarized in Finding 13. The evidence does not establish that respondent

ever used these words to CS's face, or that he used them in CS's presence during the incident summarized in Finding 13.

15. Complainant alleges that that CS felt during the incident described in Finding 13 as if respondent had "taunted" him. No non-hearsay evidence establishes how CS felt about respondent's statements to CS.

MARCH 20, 2024

16. On March 20, 2024, respondent held a fifth-grade physical education class outdoors, on a playing field adjacent to the school building. Near the end of the class period, respondent gathered the students into a group to discuss the day's activities. The students sat on the ground. Respondent stood in front of the group, holding a plastic cone.

17. According to credible witnesses' descriptions, the cones respondent usually used during physical education classes were blue, and were about 18 inches tall with a base about 10 inches across. Respondent testified that he held this type of cone on March 20, 2024.³ No evidence establishes the cone's approximate weight. No example cone, or photograph, is in evidence.

18. One student near respondent, KY, was not paying attention to the class discussion. Respondent released the cone from his hand and it fell to the ground near

³ Some witnesses who were not present on March 20, 2024, testified that they understood the cone in question to have been a large orange cone with a weighted base, of the type that traffic control crews commonly use. This testimony likely reflects misunderstanding of the event.

KY. KY later complained that the cone had hit KY's face. Respondent testified credibly that he did not see the cone hit KY but that it came close enough to KY that it could have (either on its way to the ground, or after bouncing).

19. Complainant alleges that respondent "threw" the cone at KY, although complainant alleges that respondent's action "may not have been intentional." No non-hearsay evidence establishes that respondent threw the cone at KY overhand, or forcefully, or that respondent intended to cause the cone to touch KY's body. Respondent's own testimony does establish that he either dropped or tossed the cone, and that he did so with the intention of causing the cone to come near enough to KY to startle KY into paying attention to class.

20. No evidence establishes that KY suffered any injury on March 20, 2024.

MARCH 21, 2024

21. On March 21, 2024, respondent also held a fifth-grade physical education class outdoors on the same playing field. Students engaged in several activities involving frisbees, including simple throwing and catching, playing ultimate frisbee, and playing disc golf.

22. While respondent was speaking with a student, a frisbee thrown by CS suddenly passed close to respondent's and the other student's heads. CS was in the disc golf group, and respondent believes that CS threw out of turn. CS's frisbee hit a nearby structure, which was not at all near the disc golf target.

23. Respondent admonished CS that his errant throw had been "garbage." CS attempted to argue with respondent.

24. Respondent testified that he told CS to go back, and to make a better throw when his turn came up again, but that CS ignored respondent and advanced along the disc golf course. In an earlier interview with District staff members, however, respondent stated (as did CS in an interview) that respondent told CS to sit out the rest of the class. CS did not testify, but respondent's earlier statement is more credible in light of all evidence than his hearing testimony. Respondent directed CS to sit out for the remainder of the class session on March 21, 2024.

UNKNOWN DATE⁴ IN EARLY MARCH 2024

25. In early March 2024, respondent and a different physical education class were on or near the playing field. Some fifth-grade students, supervised by their classroom teachers, were using the track that surrounds the field.

26. Fifth-grade student DS and several classmates were walking together on the track. Most of these students were walking forwards, but DS was facing the other students and talking with them while walking backwards. Respondent noticed this group of students when they were relatively close to respondent, but about as far away from their teachers on the track as was possible.

27. Respondent stepped onto the track and stood still, but did not speak. He allowed DS to continue walking backwards until DS backed into respondent.

⁴ Complainant alleges that this event also occurred on March 21, 2024, but the evidence shows it to have occurred a week or two earlier, on a date that witnesses could not remember with certainty.

Respondent then took DS by the shoulders and turned him around, telling DS to face forward because walking backwards on the track is unsafe.

28. Complainant alleges that respondent had “no reason” to involve himself in DS’s walking, because other teachers were supervising DS. The evidence does not support this allegation. Rather, the evidence establishes that DS’s conduct was unsafe, risking injury to DS as well as to other students, and that the other adults present were either too far away or too inattentive to intervene effectively.

Notice of Unprofessional Conduct

29. KY told his parent after school on March 20, 2024, that respondent had thrown a cone at KY that day during physical education class. KY’s parent reported this statement to Carmel River Elementary School’s 2023–2024 principal, Alberto Ramirez, who reported it in turn to District administrators.

30. Ramirez and District Human Resources Director⁵ Thérèse Phillips investigated KY’s parent’s report beginning on March 21, 2024. They spoke to several students, who described not only the cone incident summarized in Findings 16 through 20 but also the track incident summarized in Findings 25 through 28. They received a report on March 21, 2024, from a teacher to whom CS had complained about the frisbee incident summarized above in Findings 21 through 24.⁶ Finally, Ramirez had received a report by email on March 1, 2024, from CS’s parent about the

⁵ Phillips currently is principal of Carmel River Elementary School.

⁶ This teacher also reported that CS and KY had described the previous day’s cone incident to her, but Ramirez and Phillips already knew about this incident.

jump rope incident summarized in Findings 12 through 15, although no evidence shows what (if anything) Ramirez did to investigate this report before March 21, 2024.

31. On Friday, March 22, 2024, the District placed respondent on administrative leave while Ramirez and Phillips continued their investigation into the reports they had received regarding respondent's possible misconduct. Although their last written reports about these investigations are dated April 8, 2024, respondent remained on leave until the end of April 2024.

32. On April 29 or 30, 2024, complainant delivered a written Notice of Unprofessional Conduct (dated April 29) to respondent. This Notice states that District employees investigated the incidents summarized in Findings 12 through 28, and characterizes these employees' conclusions regarding these incidents in terms that are substantially similar to the terms in the later Statement of Charges. This Notice also includes a list of specific directives to respondent, such as not making "discriminatory, harassing, bullying, derogatory or demeaning comments to or about students" and taking any "questions on how to address a student's behavior" or requests for "assistance with handling a student's behavior" to Ramirez.

Respondent's Return to Carmel River Elementary School

33. Respondent returned from administrative leave on Wednesday, May 1, 2024. He did not teach any students on that day, but rather used the day in part to complete some training that the Notice of Unprofessional Conduct had directed him to complete.

34. On May 2 and 3, 2024, Ramirez and District Superintendent Sharon Ofek received email from several parents (including KY's and CS's parents) expressing concerns about respondent's return to Carmel River Elementary School. A parent who

also teaches at Carmel High School met with Ramirez on May 3 regarding similar concerns. Several of these parents demanded that the District terminate respondent's employment, not only because of the incidents summarized above in Findings 12 through 28 but also because they characterized these March 2024 incidents as consistent with respondent's harsh conduct toward students throughout his Carmel River Elementary School career.⁷

MAY 2, 2024

35. On May 2, 2024, respondent assisted in after-school pickups (as he had done regularly before his administrative leave). His colleague Laurie Garcia, who was supervising students waiting for school buses, asked him to take two unruly students to Ramirez's office. She could not accompany the students herself, because she needed to wait with the remaining students in the bus line.

36. Respondent was in a hurry to leave Carmel River Elementary School for the day, because he needed to go to Carmel Middle School to coach a wrestling team practice. He escorted the two students to the school office, where he encountered Ramirez and stated, "I have two kids for you. Do you want to speak to them now?" Ramirez told respondent that Ramirez could not speak with the students right then, and asked respondent to write up disciplinary referrals.

37. Complainant alleges that respondent "barged" into Ramirez's personal office with the two unruly students, and that respondent was "visibly angry" with a

⁷ Only one of these parents testified at the hearing, however. Although this parent's testimony was credible and her concerns sincere, no parents or students gave non-hearsay evidence about respondent's conduct before March 2024.

“red” face. The evidence establishes that respondent had been outdoors in the warm afternoon sun, and that he hurried with the students into the school office (not into Ramirez’s personal office). The evidence does not support complainant’s implication that respondent intruded on Ramirez in a private room, or that respondent was inappropriately angry on this occasion toward either the students or Ramirez.

38. Respondent later wrote the disciplinary referrals Ramirez requested, although they are not in evidence. To write them, he needed to ask the school registrar to confirm who were the students’ regular teachers. Complainant alleges that respondent made this request “quite loudly and in an unprofessional manner when parents were present,” but no non-hearsay evidence supports this allegation.

MAY 3, 2024

39. Respondent taught the fifth-grade physical education class that included KY on May 3, 2024. Garcia attended the class, specifically to keep an eye on KY, whose parent had told KY’s teacher that KY was apprehensive about seeing respondent again. Teaching assistant Laura Cogley also was present, as was Gloria Elber, a special dance instructor who was helping the class prepare for an upcoming performance. About 40 students were present in total.

40. Elber was primarily responsible on May 3, 2024, for leading the class, while respondent and Cogley assisted and observed. Garcia and respondent both described the students that day as generally inattentive and resistant to instruction.

41. While Elber attempted to lead the students in their rehearsal, respondent walked around the group in an effort to keep them on task. He also spent time in front of the group, simulating an audience for their performance.

42. Respondent and Garcia both testified that respondent scolded students collectively and individually for their disruptiveness, urging them to pay attention to Elber's instructions. Garcia described respondent credibly as seeming "agitated." Respondent quarreled with this word, but acknowledged in his own testimony that he felt and expressed annoyance with the students for conduct that he deemed disrespectful to Elber.

43. At one point during the class, respondent startled Garcia and several students by hitting one open palm with his other fist. A few minutes later, respondent did several pushups, which Garcia interpreted as an attempt by respondent to calm himself. Respondent concurred that he had done a set of pushups as a self-calming "physical snack," which he described as a technique that he counsels and models regularly for students.

44. Complainant alleges that respondent was so "angry and agitated" on May 3, 2024, that he "looked like he was going to burst." Despite the matters stated in Findings 42 and 43, the evidence did not support this extreme characterization.

45. Garcia testified credibly that KY appeared several times to "cower" as respondent walked near KY.⁸ She did not testify, however, that respondent ever appeared to approach KY deliberately or threateningly, or even that respondent paid any unusual attention to KY. Respondent, for his part, testified credibly that he was careful on May 3 to avoid direct interaction with KY during class, because he

⁸ Complainant alleges that respondent walked "within three feet of" KY. No evidence establishes how close respondent came to KY on May 3, 2024, or whether three feet would have been unreasonably close under the circumstances.

recognized that KY might be uncomfortable around respondent. Respondent also noted that he wore sunglasses that day, for the outdoor class, and that he doubted that any student could see precisely where he was looking at any time.

46. KY's parent reported later to Ramirez that respondent had given KY "negative stares" during class on May 3, 2024. The non-hearsay evidence does not establish that respondent made any such negative or threatening facial expressions toward KY at any time on May 3, 2024.

47. According to Ramirez, KY's parent came onto the Carmel River Elementary School campus on May 3, 2024, to pick up KY, rather than waiting for KY to come out to the parent's car. Ramirez worried that KY's parent would attempt to interact with respondent, and followed the parent to make sure that no conflict arose. Ramirez did not see KY's parent interact in any way with respondent. Respondent also testified that he does not recall seeing KY with any adult⁹ immediately after school on May 3, 2024.

48. KY's parent later reported to Ramirez, however, that KY and the parent had encountered respondent after school, where respondent gave the parent "a very negative look" while adopting an "aggressive stature." KY's parent also reported that KY compared this "negative look" to the "mean look" respondent had given to KY during class. No non-hearsay evidence established this report's truth; instead, the matters stated in Finding 47 undermine this report's credibility.

⁹ Respondent testified credibly that he does not think he would have recognized KY's parent without KY.

Additional Evidence

49. Because of the new complaints summarized in Findings 34, 46, and 48, the District again placed respondent on administrative leave beginning May 6, 2024. He did not return to the classroom during the 2023–2024 academic year. Moreover, because the District’s Board adopted District Resolution 24-15 in August 2024, respondent has not returned to teach at Carmel River Elementary School or to coach wrestling at Carmel Middle School or Carmel High School for the 2024–2025 year.

50. The matters summarized in this decision have generated significant publicity and division within the District. Some students, teachers, and parents believe strongly that respondent is an excellent teacher and coach. Others believe strongly, and regardless of his coaching skill, that respondent is too volatile and unkind to serve effectively as an elementary school physical education teacher.

LEGAL CONCLUSIONS

1. The District bears the burden in this matter of proving facts and circumstances constituting cause under the Education Code for respondent’s dismissal. A preponderance of the evidence must prove these facts and circumstances. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1038-1039.)

2. As summarized above in Findings 30 and 34, District staff members who investigated respondent received first-hand information from people who had seen or participated in many events complainant alleges as cause to dismiss respondent from employment. Under the Education Code and the Government Code, however, the Commission may not base its factual findings on District staff members’ testimony to the Commission about these other people’s accounts, no matter how reasonable or

credible that testimony may be. Rather, Education Code section 44944 and Government Code section 11513, subdivision (d), permit the Commission to consider hearsay only “for the purpose of supplementing or explaining other evidence.” Because respondent made timely objections, these statutes forbid the Commission to make factual findings based solely on hearsay that would be inadmissible in civil actions under the Evidence Code.

3. The Commission has considered all testimonial and documentary evidence, and weighed all witnesses’ credibility, in making the factual findings above. These findings reflect a preponderance of the admissible evidence.

Alleged Causes for Dismissal

4. The District alleges four statutory causes for respondent’s dismissal: immoral conduct (Ed. Code, § 44932, subd. (a)(1)), unprofessional conduct (*id.*, subd. (a)(2)), evident unfitness for service (*id.*, subd. (a)(6)), and persistent violation of, or refusal to obey, reasonable regulations prescribed by the Board (*id.*, subd. (a)(8)).

MARCH 1, 2024, JUMP ROPE INCIDENT

5. The matters summarized in Findings 12 through 15 do not constitute immoral conduct or unprofessional conduct, within the meaning of Education Code sections 44932, subdivisions (a)(1) or (a)(2). They do not demonstrate respondent’s evident unfitness for service under subdivision (a)(6), and they do not involve violation of or refusal to obey any reasonable regulation, as prohibited by subdivision (a)(8).

EARLY MARCH 2024 TRACK INCIDENT

6. Turning student DS by grasping his shoulders, as summarized in Finding 27, was a poor choice that involved more force than was reasonably necessary to

address the danger DS posed to himself and others by walking backwards on the track. Nevertheless, in total, the matters summarized in Findings 25 through 28 do not constitute immoral conduct or unprofessional conduct, within the meaning of Education Code sections 44932, subdivisions (a)(1) or (a)(2). They do not demonstrate respondent's evident unfitness for service under subdivision (a)(6), and they do not involve violation of or refusal to obey any reasonable regulation, as prohibited by subdivision (a)(8).

MARCH 20, 2024, CONE INCIDENT

7. The behavior summarized in Findings 18 and 19—causing a plastic cone to land where it might have hit student KY—was unwise. Overall, however, the matters summarized in Findings 16 through 20 do not constitute immoral conduct or unprofessional conduct, within the meaning of Education Code sections 44932, subdivisions (a)(1) or (a)(2). They do not demonstrate respondent's evident unfitness for service under subdivision (a)(6), and they do not involve violation of or refusal to obey any reasonable regulation, as prohibited by subdivision (a)(8).

MARCH 21, 2024, FRISBEE INCIDENT

8. The matters summarized in Findings 21 through 24 do not constitute immoral conduct or unprofessional conduct, within the meaning of Education Code sections 44932, subdivisions (a)(1) or (a)(2). They do not demonstrate respondent's evident unfitness for service under subdivision (a)(6), and they do not involve violation of or refusal to obey any reasonable regulation, as prohibited by subdivision (a)(8).

MAY 2, 2024, CONDUCT TOWARD RAMIREZ

9. The matters summarized in Findings 35 through 38 do not constitute immoral conduct or unprofessional conduct, within the meaning of Education Code sections 44932, subdivisions (a)(1) or (a)(2). They do not demonstrate respondent's evident unfitness for service under subdivision (a)(6), and they do not involve violation of or refusal to obey any reasonable regulation, as prohibited by subdivision (a)(8).

MAY 3, 2024, "RETALIATION" AGAINST KY AND PARENT

10. Complainant characterizes respondent's behavior toward KY and KY's parent on May 3, 2024, as "retaliation" against them for KY's earlier complaint regarding the cone incident. The matters stated in Findings 45 through 48 do not establish any such retaliation, however. For this reason, these matters do not constitute immoral conduct or unprofessional conduct, within the meaning of Education Code sections 44932, subdivisions (a)(1) or (a)(2). They do not demonstrate respondent's evident unfitness for service under subdivision (a)(6), and they do not involve violation of or refusal to obey any reasonable regulation, as prohibited by subdivision (a)(8).

MAY 3, 2024, AGITATION DURING CLASS SESSION

11. Although the matters summarized in Findings 39 through 44 establish respondent's agitation during his fifth-grade physical education class on May 3, 2024, these matters do not constitute immoral or unprofessional conduct, within the meaning of Education Code sections 44932, subdivisions (a)(1) or (a)(2). They do not demonstrate respondent's evident unfitness for service under subdivision (a)(6), and they do not involve violation of or refusal to obey any reasonable regulation, as prohibited by subdivision (a)(8).

Summary

12. The matters summarized in Findings 18, 19, 23, 24, 27, 42, and 43 show that respondent at times has displayed a short temper, and has encountered difficulty controlling some students' risky, attention-seeking misbehavior. Further, the matters stated in Findings 10 and 34 imply that other such incidents have occurred throughout respondent's career. The Commission does not discount or ignore concerns raised to it by District staff members, teachers, and parents regarding respondent's fitness for service, even though the Commission also recognizes that other staff members, teachers, and parents respect and admire respondent. Regardless of these differing opinions, however, the Commission did not receive evidence of misconduct that would warrant respondent's dismissal from employment.

ORDER

Respondent Russell Shugars should not be dismissed from employment with the Carmel Unified School District.

DATE: 03/19/2025



JULIET E. COX

Administrative Law Judge

Office of Administrative Hearings

DATE: 03/19/2025



[Joe Jones \(Mar 19, 2025 12:13 PDT\)](#)

JOE JONES

Commission Member

DATE: 03/19/2025



[Kevin Sparrer \(Mar 19, 2025 12:16 PDT\)](#)

KEVIN SPARRER

Commission Member